

M² SQUARE METER SARL

RC : 155495 | ICE : 003580341000023

IF : 66095125 | Patente : 45313804

APPT 15 IMM 12 LOT SIN AV. ALLAL EL FASSI — MARRAKECH — MAROC

SEASONAL RENTAL MANAGEMENT MANDATE

Exclusive mandate – short-term and seasonal rental

ARTICLE 1 – IDENTIFICATION OF THE PARTIES

The Principal:

Full name / Company name : _____

ID card / Passport / Company registration : _____

Full address : _____

Phone : _____

Email address : _____

Nationality : _____

hereinafter referred to as “the Principal” or “the Owner”,

The Agent:

The company SQUARE METER SARL, a real estate agency registered under company registration no. RC 155495 and ICE 003580341000023, whose registered office is located at Apartment 15, Building 12, Lotissement Sina, Avenue Allal El Fassi, Marrakech, represented by its co-managers,

hereinafter referred to as “the Agent” or “the Agency”,

ARTICLE 2 – DESIGNATION OF THE PROPERTY

The Principal entrusts to seasonal management the property designated hereafter:

Nature of the property (villa, apartment, riad, studio...): _____

Full address of the property : _____

Approximate area (m²) : _____

Number of rooms : _____

Number of bedrooms : _____

Guest capacity (persons) : _____

Floor / Level : _____

Internal Agency reference : _____

Land title no. / Cadastral ref. (if available) : _____

The property is entrusted for management in the condition in which it is found on the date of signature of this mandate, as recorded in the descriptive inventory attached as Appendix 1.

ARTICLE 3 – PURPOSE OF THE MANDATE

By this exclusive mandate, the Principal entrusts to the Agency SQUARE METER, which accepts it, the mission of managing and marketing the property designated in Article 2 with a view to its short-term and seasonal rental.

In this context, the Agency is expressly authorised to:

- Set, in consultation with the Principal, the rental rates applicable according to seasons, local events and market conditions;
- Advertise and promote the property on any communication medium chosen by the Agency, notably online booking platforms, social networks and the Agency's website, as well as any partner network;
- Receive and process booking requests, conclude seasonal rental agreements in the name and on behalf of the Principal, within the agreed price limits;
- Collect rents, down payments and security deposits in the name and on behalf of the Principal, which shall be paid into the Agency's account and remitted to the Principal in accordance with the terms of Article 6;
- Carry out, or have carried out, the check-in and check-out inventory reports for each stay;
- Coordinate cleaning, household linen and key handover, directly or through service providers referenced by the Agency;
- Ensure the proper upkeep of the property and report to the Principal any damage observed.

This mandate is granted on an exclusive basis, which means that the Principal formally undertakes not to entrust the seasonal management or marketing of the property to any other agency, intermediary or direct-booking platform during the term of the mandate. Any booking concluded directly by the Principal or through a third party during the term of this mandate shall give rise to payment in full of the Agency's fees.

ARTICLE 4 – TERM OF THE MANDATE

This mandate is granted for a period of:

☐ One (1) year ☐ Two (2) years ☐ Fixed term : _____

Effective date : _____ Expiry date : _____

Upon expiry, the mandate shall be renewed by tacit agreement for successive periods of one year, unless terminated by either party by registered letter with acknowledgement of receipt sent at least sixty (60) days before expiry.

Either party may terminate this mandate before its expiry in the event of a serious breach by the other party of its obligations, subject to a formal notice having remained without effect for fifteen (15) days.

ARTICLE 5 – PRICING AND PRICE POLICY

Rental rates are set jointly by the Principal and the Agency, depending on the seasons, market demand and the amenities of the property. The pricing schedule is established in Appendix 2 of this mandate.

The Agency is authorised to grant rate discounts up to _____ % of the displayed rate, without prior agreement of the Principal. Any discount above this threshold requires the express prior authorisation of the Principal.

Rates may be revised by mutual agreement between the parties. Any rate revision shall be formalised by a written amendment signed by both parties.

ARTICLE 6 – FEES AND FINANCIAL TERMS

In consideration of its services, the Agency shall receive management fees calculated as follows:

Type of service	Rate / Amount	Basis
Management and marketing commission	_____ %	Of the gross rent collected (excluding charges) per booking
Initial listing fees (referencing, photos, listing creation)	_____ MAD	One-off flat fee upon taking charge of the property
End-of-stay cleaning fee (if handled by the Agency)	_____ MAD	Per stay, re-billed to the tenant or charged to the owner according to the agreed rate
Inventory-of-fixtures fee (check-in and check-out)	_____ MAD	Per stay if carried out by the Agency

Rents and fees collected by the Agency shall be remitted monthly to the Principal, less the fees and expenses of the Agency, within thirty (30) days following the end of the reference month, accompanied by a detailed statement of the collections and deductions made.

The Principal expressly authorises the Agency to set off any amounts due to the Principal against any claims of the Agency on the Principal under this mandate.

ARTICLE 7 – SECURITY DEPOSIT

For each booking, the Agency shall collect a security deposit from the guest, the amount of which is set at _____ MAD (or _____ % of the gross rent per stay).

This security deposit is held by the Agency for the duration of the stay and refunded to the guest within _____ business days following departure, after deduction, where applicable, of sums due for damage noted during the check-out inventory.

In the event of damage, the Agency shall inform the Principal within forty-eight (48) hours of the end of the stay and provide him/her with the report drawn up. Amounts withheld from the security deposit shall be remitted to the Principal after deduction of any incident-management fees invoiced by the Agency.

ARTICLE 8 – OBLIGATIONS OF THE PRINCIPAL

The Principal undertakes to:

- Make the property available to the Agent in a good state of maintenance and working order, clean and fully equipped in accordance with the seasonal rental standards required for the category of the property;
- Inform the Agency without delay of any planned works, sale or modification of the property likely to affect its operation as seasonal accommodation;
- Block periods of unavailability of the property (personal occupancy, works, etc.) by notifying the Agency at least thirty (30) days in advance, without prejudice to bookings already confirmed;
- Pay all charges related to the property (homeowners' association, insurance, taxes, water, electricity, internet, etc.) unless expressly stipulated otherwise in this mandate;
- Keep the property insured against rental risks and civil liability;
- Not conclude a rental agreement directly with a guest introduced by the Agency during the term of the mandate and for a period of twelve (12) months following its expiration.

ARTICLE 9 – OBLIGATIONS OF THE AGENCY

The Agency undertakes to:

- Market the property diligently and professionally, using the communication media best suited to the target clientele;
- Select guests with care and have a compliant seasonal rental agreement signed for each stay;
- Collect rents and security deposits and account for them to the Principal on a monthly basis;
- Carry out, or have carried out, the check-in and check-out inventories and provide a copy thereof to the Principal;
- Inform the Principal of any complaint, damage or incident occurring during a stay within forty-eight (48) hours of its discovery;
- Keep a register of bookings and communicate a statement thereof to the Principal upon simple request.

ARTICLE 10 – EARLY TERMINATION

This mandate may be terminated early in the following cases:

- By amicable agreement of both parties, formalised in writing;
- By either party in the event of a serious breach by the other party of its obligations, not remedied within fifteen (15) days following formal notice by registered letter with acknowledgement of receipt;
- By the Principal, subject to honouring bookings already confirmed and to payment to the Agency of the corresponding fees.

In the event of termination of the mandate, the Principal undertakes to honour all bookings already confirmed by the Agency as at the date of termination. The Agency shall receive its fees on all such bookings, irrespective of when they are performed.

ARTICLE 11 – PENALTY CLAUSE

In the event of a breach by the Principal of the exclusivity clause provided for in Article 3, or in the event of abusive termination of the mandate, the Principal shall owe the Agency a minimum lump-sum indemnity corresponding to the fees that would have been earned by the Agency on the missed bookings, estimated on the basis of the average monthly turnover of the three months preceding the termination, prorated over the remaining term of the mandate.

This indemnity is due automatically and without prior formal notice, without prejudice to any additional damages.

ARTICLE 12 – GENERAL PROVISIONS

This mandate is governed by Moroccan law. Any dispute shall be submitted, after an attempted amicable mediation lasting thirty (30) days, to the exclusive jurisdiction of the Court of First Instance of Marrakech.

Any amendment to this mandate shall be set out in a written addendum signed by both parties.

The Principal acknowledges having read the entirety of this mandate and its appendices, and accepts them without reservation.

Done at _____, on _____

The Principal (Owner) Read and approved Signature :	For the Agent M² SQUARE METER SARL Stamp and signature:	The commercial agent Intervening party – for information Signature :
--	---	---

APPT 15 IMM 12 LOT SIN AV. ALLAL EL FASSI — MARRAKECH — MAROC

Seasonal Rental Management Mandate

Kitchen equipment	_____
Home appliances	_____
Living-room furniture	_____
Bedroom(s) – bedding	_____
Bathroom(s)	_____
Air conditioning / Heating	_____
Pool / Jacuzzi	_____
Terrace / Garden	_____
Wi-Fi / TV / Entertainment	_____
Household linen provided	☐ Yes ☐ No — Quantity : _____
Parking	_____
Observations / General condition	_____

The Principal (Owner) Read and approved Signature :	For the Agent M² SQUARE METER SARL Stamp and signature:	The commercial agent Intervening party – for information Signature :
--	---	---

APPT 15 IMM 12 LOT SIN AV. ALLAL EL FASSI — MARRAKECH — MAROC

Seasonal Rental Management Mandate

Period / Season	Price / night (MAD)	Price / week (MAD)	Minimum stay
Low season	_____	_____	_____ nights
Mid season	_____	_____	_____ nights
High season	_____	_____	_____ nights
Peak season / Holidays	_____	_____	_____ nights
Special events	_____	_____	_____ nights

The Principal (Owner) Read and approved Signature :	For the Agent M² SQUARE METER SARL Stamp and signature:	The commercial agent Intervening party – for information Signature :
--	---	---